

declared boldly for the King's view of the question, and demanded of the judges "whether this refusal of theirs to make a stay, was not nearer to a breach of their oaths?" for they were sworn to counsel the King; therefore, not to give him counsel until the business was over, was in effect not to give it at all.

Coke knew that no counsel was justified in holding this language to any judge of the courts of Westminster; he knew that the privy council had no jurisdiction to stay any proceeding in the court of King's Bench, and he therefore told Bacon, that he had far exceeded his authority, for it is the duty of counsel to plead before the judges, and not against them.

Bacon replied with equal energy; he told the judges that the King's council were obliged by their oaths, and by their offices, to plead, not only against the greatest subjects, but against any body of subjects, were they courts, judges, or even the commons assembled in parliament, and moreover, he considered, that by making this challenge, the judges had highly outraged their character. Bacon then appealed to the King, with whom Coke declined to contend.

The Chancellor having decided that the King was right, the council then put the following questions to the judges: